



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE ALTERNATIVE TEACHER COMPENSATION PLAN GRANT PROGRAM

1 CCR 301-80

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Authority: House Bill 08-1388, 22-69-104 C.R.S., 22-69-105 C.R.S. and 22-2-107 (1) (c) C.R.S.

1.00 Statement of Basis and Purpose. [Eff. 05/01/2009]

The statutory basis for these rules is found in 22-69-104 C.R.S. and 22-69-105 C.R.S. 22-69-101 et seq., C.R.S., creates an alternative teacher compensation plan grant program to be administered through the Department of Education and directs that funds be provided for a competitive grant program to school districts that seek to develop alternative teacher compensation plans. The goals of the program include teaching excellence and high student achievement in the participating school districts. The statute further directs that the Colorado Department of Education, through the alternative teacher compensation plan grant program, shall provide funding to school districts to support the design and development of an alternative teacher compensation plan that is tailored to the particular school district.

22-69-105(1) further provides that the State Board of Education shall promulgate rules in accordance with the State Administrative Procedure Act, article 4 of title 24, C.R.S., for implementation of the grant program. At a minimum, the rules shall specify the procedures and time frames for applying for the grant, the form of the grant application, the information to be provided by the school district applicant, and any additional criteria for awarding the grants. Subject to available appropriations, beginning in the 2008-2009 fiscal year, the state board shall annually award grants under the grant program to applying school districts, taking into account the department's recommendations.

2.00 Definitions [Eff. 05/01/2009]

- 2.00 (1) "Department" means the Department of Education, created and existing pursuant to section 24-1-115, C.R.S.
- 2.00 (2) "Grant Program" means the alternative teacher compensation plan grant program created pursuant to section 22-69-104.
- 2.00 (3) "P-20 Council" means the Governor's P-20 education coordinating council created by the Governor under Executive Order B 003 07.
- 2.00 (4) "School District" means any school district organized and existing pursuant to law but does not include a Junior College District.
- 2.00 (5) "State Board" means the State Board of Education, created and existing pursuant to Section 1 of Article IX of the Colorado State Constitution.
- 2.00 (6) "Teacher" means a person employed to instruct students in a public school in the state.

3.00 Implementation Procedures [Eff. 05/01/2009]

3.01 A School District may apply to the Department, in accordance with procedures and time frames established by the State Board, to receive grant moneys for the designing and development of an alternative teacher compensation plan.

- (a) Proposals are due by January 30, 2009. Mailed proposals must be postmarked by January 26, 2009;
- (b) Proposals will be reviewed by a review team to ensure they contain all required components and meet the standards of the RFP;
- (c) Applicants will be notified of awards no later than February 20, 2009;
- (d) All funds must be spent by August 31, 2009; and
- (e) Each funded project must submit a Project Completion Financial Report to CDE before September 30, 2009.

3.02 Criteria for Awarding the Grants: The criteria for awarding grants, at a minimum, shall require that:

- (a) Eligible applicants are defined as Colorado Public School Districts (including the Colorado Charter School Institute) or Colorado Boards of Cooperative Educational Services (BOCES);
- (b) The final alternative teacher compensation plan shall be designed and developed collaboratively with administrators, parents, and the School District Board of Education, and with teachers through the School District's adopted compensation procedures;
- (c) The final alternative teacher compensation plan shall be open to all teachers who meet the established performance criteria without regard to grade level, subject area, or assignment;
- (d) The School District shall seek a stable, sufficient, and sustainable source of revenue to fund the alternative teacher compensation plan on an ongoing basis;
- (e) The narrative shall include a needs statement, project activities and outcomes, timelines for activities, and a list of the key stakeholders participating in the project, and
- (f) The budget must contain a justification for each budget item with a cost comparison for items over five thousand dollars (\$5,000).

3.03 How the Funds May be Used by the School District

3.03 (1) Moneys awarded to a School District pursuant to the Grant Program shall be used by the School District to support the creation of the School District's alternative teacher compensation plan. Support may include, but need not be limited to:

3.03 (1) (a) Identifying overall goals and objectives for the School District's alternative teacher compensation plan;

3.03 (1) (b) Identifying various methods of assessing student achievement and teacher effectiveness;

3.03 (1) (c) Creating data systems needed for an alternative teacher compensation system;

- 3.03 (1) (d) Forecasting the costs of the alternative teacher compensation system to ensure sustainability;
- 3.03 (1) (e) Linking the alternative teacher compensation plan with the overall School District instructional improvement strategy and the state's education goals;
- 3.03 (1) (f) Aligning the School District's human resources, curriculum, and professional development structures with the pay structure specified in the alternative teacher compensation plan;
- 3.03 (1) (g) Establishing outreach and on-going communication within the School District and to the community regarding the alternative teacher compensation plan;
- 3.03 (1) (h) Developing strategies for recruiting and supporting highly effective teachers in struggling schools; and
- 3.03 (1) (i) Developing strategies for recruiting and retaining high-quality teachers in subject areas that are difficult to staff.
- 3.03 (2) Components of the Plan: A School District's final plan for an alternative teacher compensation system shall:
 - 3.03 (2) (a) Provide compensation in addition to existing pay schedules;
 - 3.03 (2) (b) Be transparent with respect to how a teacher qualifies for additional compensation and how much additional compensation a qualifying teacher may receive;
 - 3.03 (2) (c) Contain broad, multi-dimensional criteria for assessing performance within the system;
 - 3.03 (2) (d) Include all of the additional compensation in a teacher's retirement or pension calculations; and
 - 3.03 (2) (e) Include a procedure for challenging adverse decisions under the system to ensure fairness.

3.04

- 3.04 (1) Evaluation Plan: The plan shall contain a process for continual evaluation of the system that shall, at a minimum, address the following:
 - 3.04 (1) (a) How the alternative teacher compensation plan will demonstrate measurable effectiveness;
 - 3.04 (1) (b) How the alternative teacher compensation plan will measure and demonstrate a decrease in the School District's dropout rate;
 - 3.04 (1) (c) How the alternative teacher compensation plan will help to close the achievement gap; and
 - 3.04 (1) (d) How the alternative teacher compensation plan will help to increase students' attainment of postsecondary degrees and certificates.

- 3.05 Duration and Amount of Grant Awards. The Department shall review each grant application received from a School District pursuant to section 22-69-104 C.R.S. and shall make recommendations to the State Board concerning whether a grant should be awarded to a School District and the amount of the grant to be awarded. Subject to available appropriations, beginning in the 2008-2009 fiscal year, the State Board shall annually award grants under the grant program to qualifying School Districts, taking into account the Department's recommendations.
- 3.06 Reporting. Each School District that receives a grant through the program shall report the following information to the Department on or before August 31, 2009:
- 3.06 (1) The determined goals and how were they implemented.
 - 3.06 (2) Any outside funding sources the School District identified to help accomplish the plan.
 - 3.06 (3) Report the process for continual evaluation of the plan that shall include but not be limited to the following measures:
 - (a) Measureable effectiveness of the plan;
 - (b) How the alternative teacher compensation plan will measure and demonstrate a decrease in the School District drop out rate;
 - (c) How the alternative teacher compensation plan to will help close the achievement gap; and
 - (d) How the alternative teacher compensation plan will help to increase students' attainment of postsecondary degrees and certificates.
 - 3.06 (4) The number of teachers in the School District and how many teachers will be eligible for the alternative teacher compensation plan in the first year and in each subsequent year.
 - 3.06 (5) The final and annual costs of the plan.
- 3.07 Evaluation of Program . On or before January 15, 2010, and on or before January 15 each year thereafter, so long as grant moneys were awarded to at least one School District pursuant to the grant program during the preceding calendar year, the Department shall report to the Education Committees of the House of Representatives and the Senate, or any successor committees, and to the Governor the following information from the preceding calendar year:
- 3.07 (1) A general description of how the grant program was implemented, including the criteria used to award the grants to School Districts;
 - 3.07 (2) The number of grants awarded, the name of each School District receiving a grant, and the amount of each grant awarded;
 - 3.07 (3) A summary of the goals of each School District awarded a grant with respect to the design and development of its alternative teacher compensation plan; and
 - 3.07 (4) A summary of the key components of each final alternative teacher compensation plan submitted to the Department, pursuant to section 22-69-104 (6) C.R.S.

Editor's Notes**History**

Entire rule eff. 05/01/2009.